

M/s Harshit Rice Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 September 2022 · Writ-C No. 25222 of 2022 · **Writ disposed; bill-correction relegated to clause 5.6(b) application.**

HEADNOTE

A writ seeking correction of an electricity bill, filed without a proper application under clause 5.6(b) of the U.P. Electricity Supply Code, 2005, is disposed of with liberty to apply under that clause within ten days, the application to be decided within two weeks, and with liberty to invoke other Code provisions for a meter-reading grievance.

FACTUAL SUMMARY

M/s Harshit Rice Mill petitioned the Allahabad High Court for a direction that respondent no. 2 correct the petitioner's electricity bill. Counsel for the Electricity Department submitted that the consumer's remedy was an application under clause 5.6(b) of the U.P. Electricity Supply Code, 2005. The Court recorded that no proper application under that clause had been filed. Liberty was reserved to apply under clause 5.6(b) and, if aggrieved by meter reading, under other relevant Code provisions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(b)

bill-correction-application

HOLDING

Where the consumer has not filed a proper application under clause 5.6(b) of the U.P. Electricity Supply Code, 2005, a writ seeking correction of the electricity bill is disposed of without examining the bill on merits; the consumer may file such an application within ten days, to be decided within two weeks thereafter, and may apply under the relevant Code provisions if aggrieved by meter reading. ¶ 1

PRINCIPLE TAGS

UP-2005::5.6(b) Writ for bill correction disposed of because no proper clause 5.6(b) application had been filed; petitioner relegated to that Code forum with a time-bound decision, and to other Code provisions for any meter-reading grievance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

No examination of the bill on merits; relegated to a proper clause 5.6(b) application. ¶ 1

NOT DECIDED — METER-READING GRIEVANCE

Left to an application under the relevant Code provisions if the petitioner is so aggrieved. ¶ 1